

SENATE BILL 2034

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Title 3;
Title 4 and Title 10, Chapter 7, Part 5, relative to
legislative access to records.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 3, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) Notwithstanding another law to the contrary, a state governmental entity shall disclose records and information to a member of the general assembly to enable the member to determine whether the laws of this state are being complied with and to determine whether the laws of this state need to be changed; provided, that the procedures set out in this section and any other procedures required by law are followed.

(b) If a member of the general assembly receives a written inquiry regarding whether the laws of this state are being complied with or whether the laws of this state need to be changed, then the member of the general assembly may submit a written request to the state governmental entity that has records relevant to the inquiry, requesting review of the records and information. The written request must include any information that will assist the records custodian in locating the records and information.

(c) The member shall sign a form, before reviewing the records and information, that outlines applicable state and federal laws regarding confidentiality and the penalties for the unauthorized release of the records and information. All records and information being reviewed by a member must remain in the governmental entity's possession.

(d) After reviewing the records and information, if the member requests access to additional records and information, then the governmental entity shall discuss with the member the circumstances related to the records and information being disclosed.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.